

23LBCV01989 23LBCV01989

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BACKGROUND

On

October 18, 2023, Plaintiffs Dr. Golamali Oftadeh and Dr. Lydia Oftadeh (“Plaintiffs”) filed this action against Defendants Matt Knabe, Brianna Knabe (“Defendants”), and Bixby Hill Community Association (“Bixby Hill”) for private nuisance, breach of contract, and injunctive relief. Plaintiffs allege that their neighbors, the Knabes, have planted trees, bushes, and shrubs and allowed them to grow in excess of the height permitted by the CC&Rs, thus obstructing Plaintiffs’ view from their property.

On

March 13, 2024, the Knabes joined with another neighbor, Marisa E. Autrey (“Autrey”), to file a cross-complaint against the Oftadehs. The Knabes allege the Oftadehs have engaged in ongoing inappropriate and actionable behavior in an attempt to have the Knabes trim their trees, including approaching their gardeners, yelling over the fence, following them around the community, and poisoning the subject landscaping. Autrey alleges she is also a neighbor of the Oftadehs, and alleges the Oftadehs have engaged in similar behavior concerning her landscaping, which behavior includes viewing her and her guests through binoculars in their pool and hot tub, peering into her windows, using drones to spy on her in her home, threatening her and her significant other, and poisoning her landscaping.

On August 26, 2025, the Court granted the

Knabes’ and Autrey’s Special Motion to Strike under CCP Section

425.16 (“Anti-SLAPP”) as to Plaintiffs’ 12th cause of action for Libel. On

April 8, 2026, the Court granted the Knabes’ and Autrey’s Motion for Attorneys’

Fees in the reduced amount of \$11,543.00.

On September 9, 2025, the Court granted Bixby Hill's Anti-SLAPP Motion. On April 22, 2025, the Court granted Bixby Hill's motion for attorneys' fees pursuant to the Anti-SLAPP statute in the reduced amount of \$12,000.00.

On June 17, 2026, Plaintiffs filed the instant motion.

On June 24, 2026, Defendants filed an opposition.

On June 26, 2026, the Court granted Bixby Hill's motion for attorneys' fees and to amend the judgment under Civil Code § 5975 in the reduced amount of \$40,000.00, and \$1,267.41 in costs.

On June 30, 2026, Plaintiffs filed a reply.

On July 6, 2026, two days before the originally set hearing on July 8, 2026, Plaintiffs filed a declaration of Behroz Oftadeh and second supplemental declaration of Lydia Oftadeh in support of the motion.

DISCUSSION

Applicable
Law

"The court may, in furtherance of justice, and on any terms as may be proper, allow a party to amend any pleading or proceeding by adding or striking out the name of any party, or by correcting a mistake in the name of a party, or a mistake in any other respect; and may, upon like terms, enlarge the time for answer or demurrer. The court may likewise, in its discretion, after notice to the adverse party, allow, upon any terms as may be just, an amendment to any pleading or proceeding in other particulars; and may upon like terms allow an answer to be made after the time limited by this code." (Code Civ. Proc., § 473, subd. (a)(1).)

“Any

judge, at any time before or after commencement of trial, in the furtherance of justice, and upon such terms as may be proper, may allow the amendment of any pleading or pretrial conference order.” (Code Civ. Proc., § 576.)

“A

motion to amend a pleading before trial must:

1.

Include a copy of the proposed amendment or amended pleading, which must be serially numbered to differentiate it from previous pleadings or amendments;

2.

State what allegations in the previous pleading are proposed to be deleted, if any, and where, by page, paragraph, and line number, the deleted allegations are located; and

3.

State what allegations are proposed to be added to the previous pleading, if any, and where, by page, paragraph, and line number, the additional allegations are located.”

(Cal.

Rule of Court, rule 3.1324(a).)

“A

separate declaration must accompany the motion and must specify:

1. The

effect of the amendment;

2. Why

the amendment is necessary and proper;

3. When

the facts giving rise to the amended allegations were discovered; and;

4. The

reasons why the request for amendment was not made earlier.”

(Cal.

Rule of Court, rule 3.1324(b).)

“[T]he court’s discretion will usually be exercised liberally to permit amendment of the pleadings.” (Howard v. County of San Diego (2010) 184 Cal.App.4th 1422, 1428.) “Where no prejudice is shown to the adverse party, the liberal rule of allowance prevails.” (Higgins v. Del Faro (1981) 123 Cal.App.3d 558, 56-66; cf. Arthur L. Sachs, Inc. v. City of Oceanside (1984) 151 Cal.App.3d 315, 324 (denial of leave to amend on the eve of trial was error absent a showing a prejudice).)

Preliminary

Matters

i.

Plaintiffs’ Declarations

On July 6, 2026, two days before the originally set hearing on July 8, 2026, Plaintiffs filed the declaration of Behroz Oftadeh and second supplemental declaration of Dr. Lydia Oftadeh in support of the motion. The Court will not consider these declarations. They are not only untimely but also improperly add new evidence that could have and should have been included with the original motion, namely, exhibits of medical journals that supposedly form the foundation for the moving arguments. Defendants have not had the proper opportunity to respond to their substance and it is unclear why Plaintiffs failed to file these declarations with the Motion, or even with their Reply. Thus, the Court will not consider these declarations in analyzing the merits.

Further, the declarations of Dr. Golamali Oftadeh and Dr. Lydia Oftadeh submitted in support of the Motion are not signed. There appear to be scanned pages at the end of each declaration, but they are unintelligible. Thus, the Court will similarly not consider these declarations in analyzing the merits.

Analysis

Plaintiffs

filed the operative Second Amended Complaint ("SAC") on January 16, 2026 largely premised on nuisance claims due to Defendants' trees allegedly obstructing Plaintiffs' view. Plaintiffs now seek leave to file a Third Amended Complaint ("proposed TAC") to include new allegations of personal injury, brand new causes of action for private nuisance causing bodily injury, negligence, intentional infliction of emotional distress, and negligent infliction of emotional distress. Specifically, the proposed TAC alleges that Defendants' Brazilian Pepper Trees are causing Plaintiffs to suffer conjunctivitis and breathing problems. The SAC sought relief of regular trimming of the trees, while the proposed TAC seeks total and permanent removal of the trees.

ii. Statutory

Precepts Under California Rules of Court Rule 3.1324

First,

Plaintiffs' motion does not comply with CRC Rule 3.1324. While Plaintiffs' counsel's declaration does contain a copy of the proposed TAC, the declaration fails to (1) identify the added allegations by page and line number in addition to paragraph number; (2) state the effect of the amendment; (3) state why the amendment is necessary and proper; (4) state when the facts giving rise to the amended allegations were discovered; and (5) state the reasons why the request for amendment was not made earlier.

Therefore,

Plaintiffs' motion fails to meet the minimum procedural requirements under Rule 3.1324 and is DENIED on this basis. In the interest of completeness, notwithstanding the procedural issues with the Motion, the Court will address the merits.

ii. Inexcusable

Delay

Defendants

argue that Plaintiffs inexcusably delayed seeking leave to amend as the facts underlying their proposed amendment were known months ago, but they waited until June 17, 2026 to seek leave to amend -- after discovery had closed, after pretrial deadlines had passed, and on the eve of trial. (Opposition, p. 4.) Plaintiffs assert while they have been having symptoms for years and sought medical treatment and testing that confirmed the trees were not the

cause, they only recently examined the “Internet” and “scientific literature” and learned that Defendants’ trees could be causing their symptoms. (Motion, p. 4.) Defendants argue that this assertion does not identify any newly discovered evidence but rather shows that Plaintiffs are simply repackaging information that has been available to them throughout this litigation. (Opp., p. 4.)

Defendants further argue that Plaintiffs previously represented that they were aware of these alleged symptoms and their potential relevance weeks before filing this motion, yet expressly disclaimed any intention to seek damages based on them. (Beanum Decl., ¶¶ 2-3, Exs. A-B, [“Yes, our Clients will raise their allergy symptoms from these Brazilian Pepper Trees at trial but they are not seeking any general or special damages at this time as the result.”].)

Defendants also point to Plaintiffs’ ex parte application wherein Plaintiffs relied on Plaintiff Golamali Oftadeh’s “recent deposition” and related “research” as a basis for reevaluating their claims. (Plaintiffs’ Ex Parte Application to Advance Hearing, p. 7.) Defendants argue that since Plaintiff Golamali Oftadeh was deposed in October 2025, months before Plaintiffs filed their Second Amended Complaint in January 2026, Plaintiffs possessed that testimony and any related information well before their most recent pleading and made a conscious decision not to act on it. (Opp., p. 2.)

Here,

Plaintiffs inexcusably delayed seeking leave to amend. Plaintiff Golamali Oftadeh was deposed in October 2025, months before Plaintiffs filed their Second Amended Complaint in January 2026. Plaintiff

Lydia Oftadeh’s deposition, conducted on May 12, 2026, establishes that Plaintiff Golamali Oftadeh’s allergies began nearly two years ago, and that testing for allergens related to Brazilian Pepper Trees was negative. (Beanum Decl., Ex. D.) On May 12, 2026, shortly after Lydia Oftadeh’s deposition raising Plaintiffs’ alleged allergy-related symptoms attributed to Defendants’ landscaping, Defense Counsel emailed Plaintiffs’ Counsel to confirm whether they intended to raise such allegations at trial. (Beanum Decl., Ex. A.) On May 14, 2026, Plaintiffs’ Counsel responded, clearly stating that Plaintiffs “will raise their allergy symptoms from these Brazilian Pepper Trees at trial but they are not seeking any general or special damages at this time as the result.” (Beanum Decl., Ex. B.) Plaintiffs so recently disclaimed any attempt to seek general or special damages arising from their allergies but now

completely change course and seek to add claims for personal injuries and total removal of the trees, on the eve of trial (which has already been continued six times), while seeking another trial continuance. This is improper.

Plaintiffs claim that after “eight months of...growing suspicion that the Defendants’ Brazilian Pepper Trees were the cause of their allergies” they consulted two separate allergists, and “two tests came up negative that Pepper Trees were causing allergies.” (Mot., p. 2.) Plaintiffs have made no reasonable showing of why the request for amendment was not made earlier, citing only a “recent revelation in May 2026” when “Plaintiffs—both retired medical professional — decided to review scientific literature.” (Ibid.) Plaintiffs claim that only in May 2026 did they discover “scientific literature that resolved the apparent contradiction by explaining how the tests could be negative but the Brazilian Pepper Trees were making direct contact with Plaintiffs’ throats and lungs.” (Id., p. 3.) It is unclear when exactly in May 2026 Plaintiffs had this “revelation” as they told Defense Counsel on May 14, 2026 that they were not seeking any damages from these allergies. Plaintiffs cannot now inexplicably reverse course on the eve of trial.

Plaintiffs’ ad hominem arguments in reply are similarly unavailing: “Every glance at the patio was a reminder that they had a cold-hearted neighbor who deliberately wants to hurt them on a daily basis.” (Reply, p. 5.)

Overall, this would be Plaintiffs’ Third Amended Complaint. Plaintiffs failed to assert these claims in the Complaint, First Amended Complaint, or Second Amended Complaint, despite Plaintiffs allegedly suffering from these symptoms for years. Plaintiffs’ recent speculative and unsupported “revelations” about previously known facts do not provide good cause for this delay.

Thus,
the motion for leave to amend is DENIED for inexcusable delay.

iii. Prejudice
to Defendants

The
motion will be granted absent a showing of prejudice to Defendants. (See Higgins, supra, 123 Cal.App.3d at p. 564.)

Defendants

argue that they will be unduly prejudiced if the Court grants the motion because Plaintiffs' new claims for personal injuries will require delaying the trial, reopening discovery, retaining new experts, conducting additional depositions, and fundamentally reworking the case to address entirely new theories. (Opp., p. 4.) Defendants assert that the prejudice is particularly acute given Plaintiffs' decision to withhold medical records until June 4, 2026 despite Defendants' repeated requests for those materials. (Beanum Decl., ¶ 4.)

In reply, Plaintiffs argue that Defendants will not be prejudiced as they can use the discovery already conducted in this case and they will have more time to prepare if a trial continuance is granted.

Here, amendment at this stage based on entirely new legal theories would unduly prejudice Defendants. The proposed TAC adds brand new causes of action for private nuisance causing bodily injury, negligence, intentional infliction of emotional distress, and negligent infliction of emotional distress. The proposed TAC would transform this case from a nuisance and breach of contract action into a personal injury action requiring entirely new experts, further depositions, and reopened discovery. Allowing Plaintiffs to inject new claims now, years after the alleged conduct occurred, would require a seventh trial continuance which further burdens trial counsel, who is already substantially prepared for trial to go forth as planned on July 27, 2026, and the Court. This appears to be a final attempt on the eve of trial to reframe the case in order to disadvantage Defendants, who are prepared to try the case, while allowing Plaintiffs a second bite at the apple. This case is almost three years old and Plaintiffs have put forth no valid excuse for further delay.

Overall, allowing Plaintiffs to amend the SAC will unduly prejudice Defendants. Thus, the motion for leave to amend is DENIED based on undue prejudice to Defendants.

iv. Futility
of Proposed Claims

Defendants argue that Plaintiffs' proposed claims are

futile for various reasons. (Opp., pp. 5-6.) In the interest of judicial economy, because the Court has already denied the Motion on multiple grounds, the Court will not recite all of Defendants' futility arguments now.

Most critically, the Court finds amendment futile as the sole premise for Plaintiffs' proposed TAC is entirely speculative. Plaintiffs' allergists and allergy tests have found no link between Defendants' Brazilian Pepper Trees and Plaintiffs' symptoms. Plaintiffs rely only on their own "internet research" and purported medical journals to form their own non-expert opinions on the link between their symptoms and Defendants' trees. This is an insufficient basis to assert these new claims.

Further, it is unclear how planting trees, without any knowledge of Plaintiffs' allergies, constitutes extreme and outrageous conduct necessary to sustain a claim for intentional infliction of emotional distress.

Thus,
the motion for leave to amend is DENIED as futile.

CONCLUSION

Plaintiffs

Dr. Golamali Oftadeh and Dr. Lydia Oftadeh's Motion for Leave to file Third Amended Complaint is DENIED. Plaintiffs' Motion to Continue Trial is DENIED.

Moving party to give notice.